

25STCV11199 25STCV11199

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Division: Civil Law and Motion

Department: 731

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Case Number: 25STCV11199 Hearing Date: July 7, 2026 Dept: 731

I.

Background

Fadi K. Rasheed of Leech Tishman Nelson

& Hardiman, Inc. moves for an order relieving him of representation for

Defendants Icon Medical Holdings, Integrated Healthcare Medical Group, and

Justin Cozart.

No opposition, reply, or notice of no

opposition appear in the record.

Mr. Rasheed's motion is now before the

Court.

II.

Motion to Be Relieved as Counsel: GRANTED

A. Legal Standard

"The question of granting or denying an

application of an attorney to withdraw as counsel ([without client consent pursuant to Code of Civil Procedure, section] 284, subd. (2)) is one which lies

within the sound discretion of the trial court 'having in mind whether such withdrawal might work an injustice in the handling of the case.'" (People v.

Prince (1968) 268 Cal.App.2d 398, 406 [internal quotations omitted].)

For an attorney to be relieved as

counsel, the attorney must comply with the requirements of California Rules of

Court, rule 3.1362, subdivisions (a) and (c) to (e). These subdivisions require that an attorney file and show proof of service of (1) a notice and motion to be relived as counsel on Judicial Council form MC-051, (2) a declaration in support of the motion to be relived as counsel on Judicial Council form MC-052, and (3) a proposed order in support of the motion to be relieved as counsel on Judicial Council form MC-053.

The court should consider whether the attorney's "withdrawal can be accomplished without undue prejudice to the client's interests." (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) Moreover, the motion should also be denied if it will cause undue delay in the proceeding or cause injustice. (Mandell v. Superior Court (1977) 67 Cal.App.3d 1, 4.)

B. Discussion

The Court finds in favor Mr. Rasheed.

The moving papers show the filing of Judicial Council forms MC-051 to MC-053. All three forms were properly completed and show a valid basis for withdrawal: breakdown of the attorney-client relationship—though the Court notes that counsel's motion could have been filed with less information concerning how the breakdown occurred. (See, e.g., The State Bar of California on Prof. Resp. and Conduct, formal opn. No. 2015-192 (Feb. 9, 2015) p. 1, 4, 10.) Mr. Rasheed also filed a proof of service showing service of the moving papers on Defendants Icon Medical Holdings, Integrated Healthcare Medical Group, and Justin Cozart. Because no opposition appears in the record, no arguments relating to prejudice are before the Court.

Mr. Rasheed's motion is thus GRANTED.

III.

Conclusion

Fadi K. Rasheed's Motion to Be Relieved as Counsel—Civil is GRANTED.

This order will not take effect until Fadi K. Rasheed files a valid proof of service of this Order with the Court.